Bylaws

of Luminara Institute of Light

Adopted by the Board of Directors on ______________________________, 2026

ARTICLE I · NAME, OFFICES, AND LEGAL STATUS

Section 1.1. Name

The name of the corporation is Luminara Institute of Light (the "Corporation"). The Corporation may conduct activities under trade names or program names approved by the Board of Directors, provided all such names are used in a manner consistent with the Corporation's nonprofit and tax-exempt purposes.

Section 1.2. Principal Office

The principal office of the Corporation shall be located at 4939 NE 65th Street, Seattle, WA 98115, or at such other place as the Board of Directors may designate. The Corporation may maintain additional offices, physical or virtual, within or outside the State of Washington, as the Board may determine.

Section 1.3. Registered Office and Registered Agent

The Corporation shall continuously maintain a registered agent and registered office in the State of Washington as required by applicable law. The registered agent is Thomas A. Furness III. The registered office and registered agent may be changed from time to time in accordance with applicable law and Board authorization.

Section 1.4. Legal Status and Governing Law

The Corporation is a nonprofit corporation incorporated under the Washington Nonprofit Corporation Act, chapter 24.03A RCW, by Articles of Incorporation filed with the Washington Secretary of State effective May 7, 2026, and is intended to qualify and operate as an organization described in Section 501(c)(3) of the Internal Revenue Code, or the corresponding provision of any future federal tax law.

Section 1.5. Nonmembership Corporation

The Corporation shall have no members within the meaning of RCW 24.03A. No participant, donor, student, advisor, volunteer, partner, or supporter shall have any statutory membership, voting, governance, or property right in the Corporation solely by reason of such relationship.

Section 1.6. Public-Benefit Character

The Corporation shall be operated for public benefit and not for private inurement or private benefit, and shall not be operated for sectarian, partisan, or private commercial purposes.

ARTICLE II · PURPOSES

Section 2.1. Purposes

The Corporation is organized and shall be operated exclusively for charitable, religious, educational, and scientific purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations under Section 501(c)(3) of the Internal Revenue Code, as set forth in the Corporation's Articles of Incorporation filed effective May 7, 2026.

Section 2.2. Activities

In furtherance of, and consistent with, the specific purposes stated in the Articles of Incorporation, the Corporation may conduct education and research in human development; develop and operate immersive learning environments; conduct interdisciplinary research in human-computer interaction, extended reality, artificial intelligence, and biofeedback; advance public understanding; conduct resilience and community initiatives; enter into collaborations with educational, research, health, and civic organizations; and carry on any other lawful activity in furtherance of its exempt purposes.

Section 2.3. Limitations

The Corporation shall not engage in activities inconsistent with its nonprofit status, its Articles of Incorporation, these bylaws, applicable law, or the requirements for recognition as an organization described in Section 501(c)(3) of the Internal Revenue Code.

ARTICLE III · MEMBERSHIP

Section 3.1. No Members

The Corporation shall have no members. The Board of Directors shall have all rights and powers that would otherwise be vested in members, to the extent permitted by law and the Articles of Incorporation.

Section 3.2. Nonvoting Participation

The Corporation may establish nonvoting classes or communities of supporters, learners, volunteers, partners, advisors, or program participants. Such designations may use "member" as a descriptive term only and shall not create statutory membership rights, voting rights, ownership rights, or rights to assets of the Corporation.

ARTICLE IV · BOARD OF DIRECTORS

Section 4.1. General Powers

The affairs, property, and activities of the Corporation shall be managed under the authority of the Board of Directors (the "Board"). The Board may delegate management and operational authority to officers, employees, contractors, committees, or agents, but such delegation shall not relieve the Board of its fiduciary oversight responsibilities.

Section 4.2. Number of Directors

The Board shall consist of not fewer than three (3) and not more than fifteen (15) voting Directors, the exact number to be fixed from time to time by Board resolution. No decrease in the number of Directors shall shorten the term of any incumbent Director.

Section 4.3. Qualifications

Directors shall be individuals selected for integrity, judgment, capacity for fiduciary service, and ability to contribute expertise or resources relevant to the Corporation's purposes, including education, science, technology, ethics, finance, law, or organizational leadership.

Section 4.4. Independence

The Board shall endeavor to maintain a majority of independent Directors. An independent Director is a Director who does not receive compensation from the Corporation other than reasonable reimbursement of expenses and who does not have a material financial interest in a transaction or relationship that would impair independent judgment. The Board may adopt a more detailed independence policy.

Section 4.5. Election of Directors

Directors shall be elected by the affirmative vote of a majority of the Directors then in office, unless a greater vote is required by these bylaws, the Articles of Incorporation, or applicable law. Directors may be elected at the annual meeting or at any regular or special meeting for which notice states that election of Directors will be considered.

Section 4.6. Initial Classification and Staggered Terms

At the organizational meeting or as soon as practicable thereafter, the initial Directors may classify themselves into three classes with staggered terms so that approximately one-third of the Directors are elected each year. Class I Directors shall serve until the first annual meeting after adoption of these bylaws, Class II Directors until the second annual meeting, and Class III Directors until the third annual meeting. Thereafter, Directors shall generally be elected for three-year terms.

Section 4.7. Term Limits

A Director may serve two consecutive full three-year terms. After serving two consecutive full terms, a Director shall be eligible for re-election only after at least one year off the Board, unless the Board determines by a two-thirds vote of Directors then in office that continued service is in the best interests of the Corporation. Partial terms served to fill vacancies shall not count as full terms unless the Board so determines.

Section 4.8. Resignation

A Director may resign at any time by delivering written notice to the Chair, President, Secretary, or Board. A resignation is effective at the time stated in the notice, or if no time is stated, upon delivery. Acceptance of the resignation is not necessary to make it effective unless the resignation so provides.

Section 4.9. Removal

One or more Directors may be removed, with or without cause, by the affirmative vote of at least two-thirds of the Directors then in office, excluding the Director whose removal is under consideration, to the extent permitted by applicable law. Removal for cause may include, without limitation, breach of fiduciary duty, failure to disclose conflicts, repeated failure to participate, or conduct materially harmful to the Corporation.

Section 4.10. Vacancies

A vacancy on the Board may be filled by the affirmative vote of a majority of the remaining Directors, even if less than a quorum remains, unless applicable law or the Articles of Incorporation require otherwise. A Director elected to fill a vacancy shall serve for the unexpired term of the predecessor or for such term as the Board determines, consistent with the staggered-term structure.

Section 4.11. Compensation of Directors

Directors shall not receive compensation for service as Directors. Directors may be reimbursed for reasonable expenses incurred on behalf of the Corporation in accordance with policies approved by the Board. A Director may receive reasonable compensation for separate services to the Corporation only if approved under the conflict-of-interest and compensation-review procedures in these bylaws and applicable Board policy.

Section 4.12. Standards of Conduct

Each Director shall discharge the duties of a Director in good faith, with the care an ordinarily prudent person in a like position would exercise under similar circumstances, and in a manner the Director reasonably believes to be in the best interests of the Corporation, consistent with the standards of conduct for directors under RCW 24.03A.495.

Section 4.13. Director Responsibilities

Directors are expected to prepare for and attend Board meetings, review financial and program information, disclose conflicts of interest, and support prudent stewardship of the Corporation's resources.

Section 4.14. Founder, Emeritus, and Honorary Designations

The Board may recognize founders, emeritus Directors, honorary chairs, or similar designees. Such designations shall not, by themselves, create voting rights, property rights, veto rights, employment rights, or ex officio Board seats unless expressly provided in the Articles of Incorporation or by a Board election consistent with these bylaws.

ARTICLE V · MEETINGS AND ACTIONS OF THE BOARD

Section 5.1. Annual Meeting

The Board shall hold an annual meeting at least once each fiscal year for the election of Directors and officers, review of finances and compliance, and transaction of such other business as may properly come before the Board.

Section 5.2. Regular Meetings

Regular meetings of the Board may be held at such times and places as the Board determines by resolution.

Section 5.3. Special Meetings

Special meetings of the Board may be called by the Chair, the President, the Secretary at the request of the Chair or President, or any two Directors. The person or persons calling the meeting may designate the time, place, and means of participation.

Section 5.4. Place and Remote Participation

Board meetings may be held at the principal office of the Corporation, at any other place within or outside the State of Washington, or fully or partly by remote communication. Directors participating by conference telephone, videoconference, or other communications equipment through which all participants can hear each other or otherwise participate contemporaneously shall be deemed present in person. Remote meetings shall follow the procedures of RCW 24.03A.580 to the greatest practicable extent.

Section 5.5. Notice

Notice of each annual, regular, or special meeting shall be delivered to each Director by personal delivery, mail, courier, email, other electronic transmission, or any other method authorized by law. Unless the Board has fixed a regular meeting schedule by resolution, notice shall be given at least seven (7) days before the meeting. Notice of a special meeting shall be given at least fortyeight (48) hours before the meeting, except in an emergency or as otherwise permitted by law. Notice of any meeting at which a Major Action will be considered must state the proposed Major Action.

Section 5.6. Waiver of Notice

A Director may waive notice of any meeting before or after the meeting by written or electronic waiver. Attendance at a meeting constitutes waiver of notice unless the Director attends for the express purpose of objecting to the transaction of business because the meeting was not lawfully called or convened.

Section 5.7. Quorum

A majority of the Directors then in office shall constitute a quorum for the transaction of business at any Board meeting. If a quorum is not present, a majority of Directors present may adjourn the meeting without further notice except as required by law.

Section 5.8. Manner of Acting

Except as otherwise provided by these bylaws, the Articles of Incorporation, or applicable law, the act of a majority of Directors present at a meeting at which a quorum is present shall be the act of the Board. Directors may not vote by proxy.

Section 5.9. Major Actions

The following actions require the affirmative vote of at least two-thirds of the Directors then in office, unless a greater vote is required by the Articles of Incorporation or applicable law: amendment of the Articles of Incorporation; amendment or repeal of these bylaws; merger, consolidation, conversion, or domestication; sale or disposition of all or substantially all assets outside the ordinary course; voluntary dissolution; adoption of a plan of distribution; creation of a subsidiary or controlled entity; material change to the Corporation's stated purposes; election or removal of the President or Executive Director if such person is a Director; and any other action designated by the Board as a Major Action.

Section 5.10. Action Without a Meeting

Any action required or permitted to be taken at a Board meeting may be taken without a meeting if all Directors entitled to vote on the action consent to the action in writing or by electronic transmission, and the consent describes the action taken. Such consent has the same effect as a unanimous vote at a meeting and shall be filed with the minutes or corporate records.

Section 5.11. Minutes and Records

The Secretary or designee shall ensure that minutes are kept for Board meetings and for committees exercising Board authority. Minutes shall record attendance, actions taken, votes, recusals, conflicts disclosed, and other matters required by law.

Section 5.12. Executive Sessions

The Board may meet in executive session to discuss confidential personnel, legal, financial, or conflict-of-interest matters. The Board shall determine who may attend executive sessions and shall maintain appropriate records of actions taken.

ARTICLE VI · OFFICERS

Section 6.1. Officers

The officers of the Corporation shall include a Chair of the Board, a Vice Chair, a Secretary, and a Treasurer. The Board may also elect or appoint a President, Executive Director, Chief Executive Officer, Assistant Secretary, Assistant Treasurer, or other officers and agents as it deems appropriate. The Chair must be a Director. Other officers need not be Directors unless the Board so determines.

Section 6.2. Election and Term

Officers shall be elected annually by the Board and shall serve until the next annual meeting or until their successors are elected and qualified, unless the officer earlier resigns, is removed, or becomes unable to serve. Officers may be re-elected without limitation, subject to Board review.

Section 6.3. Multiple Offices

Any person may hold more than one office, except that the same person may not simultaneously serve as Chair and Secretary or as President and Secretary unless permitted by applicable law and expressly approved by the Board for a temporary period. When one person holds multiple offices, the Board shall maintain appropriate checks and balances for financial controls and recordkeeping.

Section 6.4. Resignation, Removal, and Vacancies

An officer may resign at any time by written notice to the Chair, President, Secretary, or Board. The Board may remove any officer, with or without cause, by majority vote of Directors then in office, without prejudice to any contractual rights. Vacancies may be filled by the Board for the remainder of the term or for a new term established by the Board.

Section 6.5. Chair of the Board

The Chair shall preside at Board meetings, serve as a liaison between the Board and executive leadership, help set Board agendas, and perform such other duties as the Board may assign. The Chair shall not exercise unilateral authority over the Corporation except as authorized by the Board or these bylaws.

Section 6.6. Vice Chair

The Vice Chair shall perform the duties of the Chair when the Chair is absent or unable to act, and shall perform such other duties as the Chair or Board may assign.

Section 6.7. President

The President, if elected, shall be the principal executive officer unless the Board appoints a separate Executive Director or Chief Executive Officer. Subject to Board oversight, the President shall coordinate implementation of Board-approved strategy, programs, and operations, and shall perform such other duties as the Board may assign.

Section 6.8. Executive Director or Chief Executive Officer

The Board may appoint an Executive Director or Chief Executive Officer to manage the Corporation's day-to-day activities, personnel, programs, finances, and operations, subject to Board-approved budgets, policies, and strategic direction. The Executive Director or Chief Executive Officer may be a voting Director only if elected as a Director in accordance with these bylaws; otherwise, such person may attend Board meetings as a nonvoting participant at the invitation of the Board.

Section 6.9. Secretary

The Secretary shall ensure that accurate minutes and records are maintained, notices are duly given, corporate records are preserved, and governance documents are available as required by law and Board policy. The Secretary may delegate ministerial recordkeeping tasks while retaining oversight responsibility.

Section 6.10. Treasurer

The Treasurer shall oversee financial matters, including budgets, financial reporting, internal controls, banking relationships, tax filings, and financial policies, and shall report regularly to the Board on the financial condition of the Corporation. The Board may require the Treasurer or other persons handling funds to be bonded.

Section 6.11. Compensation of Officers

Officer compensation, if any, shall be reasonable and approved under the conflict-of-interest and compensation-review procedures in these bylaws and applicable Board policies. No officer is prohibited from receiving reasonable compensation for services solely because the officer also serves as a Director, provided the compensation is approved by disinterested Directors and complies with applicable law. Officers shall discharge their duties consistent with the standards of conduct for officers under RCW 24.03A.590.

Section 6.12. Delegation

The Board may delegate authority to officers, employees, contractors, or agents to act on behalf of the Corporation, subject to limits, budgets, policies, and reporting requirements established by the Board.

ARTICLE VII · COMMITTEES AND ADVISORY BODIES

Section 7.1. Board Committees

The Board may create one or more committees of the Board by resolution. Committees exercising Board authority shall include only Directors as voting members, unless applicable law permits otherwise, and shall be subject to the direction and oversight of the Board. The creation of a committee shall not relieve the Board or any Director of fiduciary responsibility.

Section 7.2. Limitations on Committee Authority

No committee may amend the Articles of Incorporation or these bylaws; elect, appoint, or remove Directors or officers; approve a merger, conversion, sale of substantially all assets, dissolution, plan of distribution, or other Major Action; authorize action inconsistent with Board resolutions; or exercise any authority prohibited by law, the Articles of Incorporation, these bylaws, or Board resolution.

Section 7.3. Standing Committees

The Board may establish standing committees, including, as appropriate: (a) a Governance and Nominating Committee (Board recruitment, governance policies, evaluations, succession planning, bylaw review); (b) a Finance Committee (budgets, financial oversight, investments, audits or reviews, financial controls); (c) a Program and Research Committee (program quality, research agenda, scientific integrity, publications); and (d) an Ethics and Safety Committee (participant safety, research ethics, data governance, accessibility).

Section 7.4. Advisory Councils

The Board may create advisory councils or other advisory bodies to provide expertise and support. Advisory councils are not committees of the Board, may not exercise Board authority, and have no voting rights unless an advisory member is separately elected as a Director.

Section 7.5. Working Groups and Program Divisions

The Board or authorized officers may establish working groups, laboratories, program divisions, or project teams. Such bodies may design, test, evaluate, and recommend programs, but may not bind the Corporation, approve budgets beyond delegated authority, or exercise Board powers unless expressly authorized by the Board.

Section 7.6. Committee and Working Group Records

Committees and working groups shall keep records appropriate to their authority and activities and shall report to the Board, officers, or supervising committee as required. Records involving research participants, confidential information, finances, or personnel shall be maintained in accordance with Board policies and applicable law.

ARTICLE VIII · RESEARCH ETHICS, PARTICIPANT SAFETY, AND REPORTING

Section 8.1. Research Involving Human Participants

Research involving human participants shall be designed and conducted under appropriate ethical review and oversight, which may include an institutional review board, independent ethics review process, qualified research partner, or other review mechanism appropriate to the activity and risk level. The Corporation shall require informed consent, confidentiality protections, risk assessment, data safeguards, and participant withdrawal rights where appropriate.

Section 8.2. Participant Safety and Informed Participation

Programs involving immersive media, biofeedback, artificial intelligence systems, or group processes shall include safeguards appropriate to the activity, including clear descriptions of purpose, risks, data use, facilitator role, and limitations. Participation shall be voluntary and non-coercive.

Section 8.3. Clinical Boundaries

Unless otherwise approved by the Board and delivered by appropriately licensed professionals under applicable law, the Corporation's programs are educational, research, or community-support activities and are not a substitute for medical, psychological, psychiatric, or other licensed professional care. Programs touching mental health, crisis, or vulnerable populations shall include appropriate referral, emergency, and safeguarding protocols.

Section 8.4. Data Practices

The Corporation shall adopt responsible data practices for artificial intelligence, extended reality, sensor, biofeedback, and analytics systems, including transparency, data minimization, informed consent, security, and human oversight, as set forth in Board policy.

Section 8.5. Minors and Vulnerable Populations

Programs involving minors or other protected or vulnerable populations shall follow applicable safeguarding, consent, privacy, accessibility, and reporting requirements. The Board may require background checks, facilitator training, child-protection protocols, guardian consent, and partner review where appropriate.

Section 8.6. Public Communications

Public communications about the Corporation's programs, research, and outcomes shall be accurate. Claims of efficacy or benefit shall be supported by appropriate evidence or clearly framed as hypothesis or pilot finding.

Section 8.7. Reporting Concerns

The Board shall establish or maintain reasonable procedures for reporting ethical concerns, safety concerns, conflicts of interest, financial irregularities, harassment, discrimination, research misconduct, or data incidents. Retaliation against good-faith reporting is prohibited.

ARTICLE IX · CONFLICTS OF INTEREST, PRIVATE BENEFIT, AND COMPENSATION REVIEW

Section 9.1. Conflict Policy

The Corporation shall maintain and follow a written conflict-of-interest policy, substantially in the form attached as Appendix A or as later amended by the Board. Directors, officers, key employees, committee members with delegated Board authority, and other persons designated by the Board shall comply with the policy and submit annual disclosures.

Section 9.2. Disclosure

A Director, officer, or covered person shall promptly disclose any actual, potential, or perceived conflict of interest, including any financial interest, family relationship, fiduciary relationship, employment or consulting arrangement, intellectual-property interest, donor restriction, or institutional affiliation that could affect impartial decision-making on behalf of the Corporation.

Section 9.3. Recusal and Approval

After disclosure, the Board or authorized committee shall determine whether a conflict exists and how it will be managed. Interested persons shall not vote on the matter and shall leave the meeting during deliberation and voting unless invited to provide information. The matter shall be approved only by disinterested Directors or committee members when required by law, these bylaws, or Board policy.

Section 9.4. Reasonableness and Fairness

Transactions involving a covered person, including compensation arrangements, contracts for goods or services, licensing arrangements, and research partnerships, shall be reasonable, fair to the Corporation, consistent with the Corporation's exempt purposes, and approved in good faith after review of relevant comparability or market information when appropriate.

Section 9.5. Private Inurement and Excess Benefit

No part of the net earnings or assets of the Corporation shall inure to the benefit of, or be distributable to, any Director, officer, founder, donor, employee, or other private individual, except that the Corporation may pay reasonable compensation for services rendered and make payments and distributions in furtherance of its exempt purposes.

Section 9.6. Corporate Opportunities

Directors, officers, employees, and covered persons shall not appropriate for personal benefit any opportunity, grant, partnership, intellectual property, or business opportunity that properly belongs to the Corporation, unless the Board, after full disclosure and disinterested review, determines that the Corporation will not pursue the opportunity and approves the arrangement.

Section 9.7. Documentation

Minutes or records shall document disclosures, recusals, deliberations, votes, comparability information reviewed, and the basis for approval of any conflict transaction or compensation arrangement.

ARTICLE X · CONTRACTS, FUNDS, RECORDS, AND FINANCIAL MANAGEMENT

Section 10.1. Contracts

The Board may authorize any officer, employee, agent, or other representative to enter into contracts or execute instruments in the name and on behalf of the Corporation. Such authority may be general or limited to specific instances, budgets, projects, or thresholds.

Section 10.2. Checks, Drafts, and Electronic Disbursements

All checks, drafts, electronic payments, or other orders for payment of money shall be signed, approved, or authorized by such persons and in such manner as the Board may determine by policy or resolution. The Board shall establish financial controls appropriate to the size, risk, and activities of the Corporation.

Section 10.3. Deposits and Custody of Funds

All funds of the Corporation shall be deposited to the credit of the Corporation in banks, trust companies, credit unions, investment accounts, or other depositories selected or approved by the Board or its authorized designee.

Section 10.4. Borrowing and Indebtedness

No loans shall be contracted on behalf of the Corporation and no evidence of indebtedness shall be issued in its name unless authorized by Board resolution. Such authority may be general or limited to specific instances.

Section 10.5. No Loans to Directors or Officers

The Corporation shall not make loans to, guarantee obligations of, or extend credit to Directors or officers, except to the extent expressly permitted by applicable law for reimbursement, advances, indemnification, or similar lawful purposes approved under Board policy.

Section 10.6. Gifts, Grants, and Restricted Funds

The Corporation may accept contributions, grants, bequests, sponsorships, program fees, contracts, in-kind contributions, and other support consistent with its exempt purposes. The Board may decline, return, or restrict any gift or grant that is inconsistent with the Corporation's purposes, creates undue private benefit, imposes inappropriate control, or creates unacceptable risk. Donor-restricted funds shall be used in accordance with applicable restrictions and law.

Section 10.7. Budget and Financial Reporting

The Board shall approve an annual budget or financial plan and shall receive regular financial reports. The Treasurer or designated financial officer shall report significant variances, risks, restricted funds, grants, obligations, and material financial developments to the Board.

Section 10.8. Books and Records

The Corporation shall keep correct and complete books and records of account, minutes of Board and committee proceedings, records of Directors and officers, current Articles of Incorporation and bylaws, tax filings, policies, contracts, and other records required by law. Records may be maintained in electronic form where permitted by law.

Section 10.9. Fiscal Year

The fiscal year of the Corporation shall end on December 31 of each year.

Section 10.10. Audit, Review, or Financial Oversight

The Board shall determine whether the Corporation's financial statements should be audited, reviewed, compiled, or otherwise examined based on legal requirements, grant requirements, revenue thresholds, risk, and best practices. The Board may establish an Audit Committee or assign audit oversight to the Finance Committee.

Section 10.11. Tax and Charitable Registration Compliance

The Corporation shall make required federal, state, and local tax filings and charitable registrations, including filings related to tax exemption, annual information returns, payroll, sales tax, and charitable solicitation under chapter 19.09 RCW, and other requirements applicable to its activities.

Section 10.12. Document Retention

The Board may adopt a document retention and destruction policy governing preservation of corporate, financial, research, participant, employment, legal, tax, data, and intellectual-property records. No records shall be destroyed in violation of law, litigation hold, audit requirement, or Board policy.

ARTICLE XI · INTELLECTUAL PROPERTY AND PUBLICATIONS

Section 11.1. Ownership and Use

The Corporation may create, acquire, own, license, publish, distribute, and protect intellectual property, including curricula, research outputs, software, data sets, trademarks, media, inventions, and educational tools, provided that such assets are used in furtherance of the Corporation's exempt purposes.

Section 11.2. Agreements

The Board may require employees, contractors, fellows, collaborators, volunteers, and partners to enter into written agreements regarding intellectual-property ownership, licensing, confidentiality, attribution, publication rights, data use, and revenue sharing.

Section 11.3. Licensing and Revenue

The Corporation may license or commercialize intellectual property when such activity supports its exempt purposes, is conducted with appropriate private-benefit safeguards, and dedicates net revenues to the Corporation's exempt purposes. Licensing arrangements involving insiders or related parties shall be reviewed under the conflict-of-interest policy.

Section 11.4. Publication

The Corporation may publish research, curricula, toolkits, data summaries, and public reports. The Board may authorize open, accessible, or low-cost dissemination consistent with participant privacy, research integrity, donor restrictions, and sustainability.

Section 11.5. Privacy and Confidentiality

The Corporation shall protect confidential, personal, biometric, health-related, student, donor, employee, partner, research, and proprietary information in accordance with applicable law, consent, and Board policy.

ARTICLE XII · INDEMNIFICATION AND INSURANCE

Section 12.1. Indemnification

To the fullest extent permitted by applicable law, including RCW 24.03A.630, the Corporation shall indemnify any Director, officer, employee, volunteer, or agent who is made a party to a proceeding by reason of service to the Corporation, against expenses, judgments, fines, settlements, and other amounts reasonably incurred, provided that the person acted in good faith and in a manner reasonably believed to be in or not opposed to the best interests of the Corporation, and otherwise satisfied applicable legal requirements.

Section 12.2. Advancement of Expenses

The Corporation may advance expenses incurred in defending a proceeding to the extent permitted by law and upon such terms as the Board determines, including written affirmation of good-faith conduct and an undertaking to repay amounts if indemnification is later determined to be unavailable.

Section 12.3. Insurance

The Corporation may purchase and maintain insurance, including directors and officers liability, general liability, professional liability, cyber, employment practices, volunteer, event, and other insurance, on behalf of the Corporation and persons serving the Corporation, whether or not the Corporation would have power to indemnify such persons under applicable law.

Section 12.4. Nonexclusive Rights

Indemnification rights under these bylaws are not exclusive of any other rights to which a person may be entitled under law, the Articles of Incorporation, Board resolution, contract, insurance, or otherwise.

ARTICLE XIII · TAX-EXEMPT COMPLIANCE, RESTRICTIONS, AND DISSOLUTION

Section 13.1. Operation for Exempt Purposes

The Corporation shall be operated exclusively for charitable, educational, scientific, and other exempt purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code. The Corporation shall not carry on any activity not permitted to be carried on by a corporation exempt from federal income tax under Section 501(c)(3).

Section 13.2. Private Inurement and Private Benefit

No part of the net earnings, assets, or income of the Corporation shall inure to the benefit of any private individual or person, except that the Corporation may pay reasonable compensation for services rendered and make payments in furtherance of its exempt purposes. The Corporation shall avoid more than incidental private benefit.

Section 13.3. Lobbying

No substantial part of the activities of the Corporation shall consist of carrying on propaganda or otherwise attempting to influence legislation, except to the extent permitted for organizations described in Section 501(c)(3) of the Internal Revenue Code. The Board may authorize a Section 501(h) election if it determines that such election is in the best interests of the Corporation.

Section 13.4. Political Campaign Activity

The Corporation shall not participate in, or intervene in, any political campaign on behalf of or in opposition to any candidate for public office. This prohibition includes contributions to political campaigns and public statements for or against candidates, to the extent prohibited by Section 501(c)(3) of the Internal Revenue Code.

Section 13.5. Dissolution

Upon dissolution of the Corporation, after paying or making provision for payment of the liabilities of the Corporation, all remaining assets shall be distributed exclusively for one or more exempt purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, or to one or more organizations described in Section 501(c)(3), or shall be distributed to the federal government, or to a state, local, tribal, or other governmental entity, for a public purpose. No Director, officer, founder, employee, donor, or private individual shall be entitled to receive any distribution of the Corporation's assets by reason of dissolution. Property held by the Corporation subject to restrictions on use, including property held for charitable purposes, shall be distributed consistent with those restrictions and with RCW 24.03A.906 and RCW 24.03A.908.

Section 13.6. Supremacy of Articles, Law, and Exempt Purpose

If any provision of these bylaws conflicts with the Articles of Incorporation, applicable law, or mandatory requirements for recognition under Section 501(c)(3), the Articles of Incorporation, applicable law, and mandatory tax-exemption requirements shall control to the extent of the conflict.

ARTICLE XIV · AMENDMENTS

Section 14.1. Power to Amend

These bylaws may be amended, restated, or repealed, and new bylaws may be adopted, by the affirmative vote of at least two-thirds of the Directors then in office at a meeting for which notice states that amendment of the bylaws will be considered, or by unanimous written consent of the Directors entitled to vote.

Section 14.2. Protective Review

Before adopting any amendment affecting the Corporation's name, purposes, tax-exempt status, dissolution clause, nonmembership status, Board composition, or conflict-of-interest procedures, the Board shall review the amendment for consistency with the Articles of Incorporation, applicable law, tax-exemption requirements, and donor restrictions.

Section 14.3. No Inconsistent Amendment

No amendment shall authorize the Corporation to conduct activities inconsistent with its Articles of Incorporation, its tax-exempt status, or applicable law.

CERTIFICATE OF ADOPTION

The undersigned Secretary of Luminara Institute of Light certifies that the foregoing bylaws were duly adopted by the Board of Directors of the Corporation on ______________________, 2026, and remain in effect as of that date, subject to any later amendments duly adopted in accordance with these bylaws.

______________________________	______________________________
Michele Atwater	Thomas A. Furness III
Secretary, certifying	Chair, attesting
Date signed: ______________________	Date signed: ______________________

APPENDIX A · CONFLICT OF INTEREST POLICY

This Conflict of Interest Policy is part of the governance framework of Luminara Institute of Light. The Board may amend this policy by the same vote required to amend the bylaws, provided that the amended policy remains consistent with applicable law and tax-exemption requirements.

Section A.1. Purpose

The purpose of this policy is to protect the Corporation's interests when it is contemplating a transaction, arrangement, compensation decision, research partnership, licensing arrangement, grant relationship, or other matter that might benefit the private interest of a Director, officer, key employee, committee member, founder, substantial contributor, family member, controlled entity, or other covered person.

Section A.2. Covered Persons

Covered persons include Directors, officers, key employees, members of committees with delegated Board authority, persons with substantial influence over the Corporation, and any other persons designated by the Board. The Board may require additional disclosures from employees, contractors, collaborators, investigators, advisors, or volunteers whose roles create potential conflicts.

Section A.3. Financial Interest

A person has a financial interest if the person, directly or indirectly, through business, investment, family, employment, fiduciary, intellectual-property, donor, or institutional relationships, has or may have: (a) an ownership, investment, compensation, consulting, royalty, licensing, or employment interest in an entity with which the Corporation has or is negotiating a transaction or arrangement; (b) a compensation, grant, fellowship, contract, reimbursement, loan, benefit, or other financial arrangement with the Corporation; (c) a potential ownership, investment, compensation, intellectual-property, or other financial interest in a transaction or arrangement involving the Corporation; (d) a fiduciary or leadership role in another organization whose interests may intersect with the Corporation; or (e) a family or close personal relationship that could reasonably affect impartial decision-making. A financial interest is not necessarily a conflict of interest. A conflict exists only if the Board or authorized committee determines that a conflict exists after disclosure and review.

Section A.4. Duty to Disclose

A covered person shall disclose the existence and nature of any actual, potential, or perceived conflict of interest to the Board or authorized committee promptly and before the Corporation acts on the related matter. Disclosure shall include material facts needed for informed review.

Section A.5. Determining Whether a Conflict Exists

After disclosure and any necessary questions, the interested person shall leave the meeting while the remaining disinterested Directors or committee members discuss and determine whether a conflict exists. The interested person may be invited to provide information but shall not be present for deliberation or voting unless the Board determines otherwise in accordance with law.

Section A.6. Procedures for Addressing a Conflict

If a conflict exists, the Board or authorized committee shall determine whether the Corporation can obtain a more advantageous transaction or arrangement with reasonable effort from a person or entity that would not create a conflict. If a more advantageous alternative is not reasonably available, the disinterested Directors or committee members may approve the transaction by determining in good faith that the transaction is fair, reasonable, in the best interests of the Corporation, and consistent with its exempt purposes.

Section A.7. Voting and Recusal

An interested person shall not vote on, attempt to influence improperly, or be present for the vote on the matter giving rise to the conflict. The minutes shall reflect the disclosure, recusal, discussion, vote, and basis for approval.

Section A.8. Compensation Review

Compensation for Directors, officers, key employees, founders, or other persons with substantial influence shall be approved by disinterested Directors or an authorized committee using appropriate comparability information where available. The approval shall be documented before payment or before any material change in compensation, unless impracticable, in which case documentation shall occur as soon as possible.

Section A.9. Intellectual Property and Research Conflicts

Conflicts involving intellectual property, research data, authorship, invention rights, licensing, sponsored research, human-participant research, donor influence, or technology commercialization shall be disclosed and managed with particular attention to participant protection, research integrity, private-benefit limitations, and the Corporation's exempt purposes.

Section A.10. Annual Statements

Each covered person shall annually sign a statement affirming that the person has received, read, understands, and agrees to comply with this policy; has disclosed known conflicts; and understands that the Corporation is charitable and must engage primarily in activities that accomplish its exempt purposes.

Section A.11. Violations

If the Board or authorized committee has reasonable cause to believe a covered person failed to disclose a conflict, it shall inform the person and allow an opportunity to explain. If, after hearing the response and making further inquiry as warranted, the Board or committee determines that the person failed to disclose a conflict, it may take appropriate corrective and disciplinary action.

Section A.12. Periodic Reviews

The Board shall periodically review compensation arrangements, partnerships, transactions with insiders, research and licensing arrangements, and other matters to ensure that the Corporation operates consistently with its exempt purposes and does not provide impermissible private benefit.

Section A.13. Use of Outside Experts

The Board may use outside experts, advisors, appraisers, compensation data, counsel, accountants, research ethics reviewers, or other resources to assist in conflict and reasonableness determinations. Reliance on outside experts shall not relieve the Board of responsibility for the decision.

APPENDIX B · ANNUAL CONFLICT DISCLOSURE STATEMENT

Name: ______________________________

Role(s): ______________________________

Date: ______________________________

I affirm that I have received, read, understand, and agree to comply with the Conflict of Interest Policy of Luminara Institute of Light. I understand that the Corporation is organized for charitable, educational, and scientific purposes and must avoid private inurement and impermissible private benefit.

Please disclose below any actual, potential, or perceived conflicts of interest, including financial interests, family relationships, employment, consulting, intellectual-property interests, fiduciary roles, donor restrictions, sponsored research relationships, institutional affiliations, or other circumstances that could affect impartial decision-making on behalf of the Corporation.

1. Entities in which I or a family member have a leadership, ownership, employment, consulting, advisory, donor, grant, or fiduciary role:

____

____

2. Transactions, contracts, compensation, grants, reimbursements, licenses, research relationships, or other arrangements involving the Corporation in which I or a family member may have an interest:

____

____

3. Intellectual property, inventions, software, curricula, media, data, publications, or other assets related to the Corporation's work in which I may have a personal, institutional, or financial interest:

____

____

4. Other relationships or circumstances that may create an actual, potential, or perceived conflict:

____

____

I agree to update this disclosure promptly if circumstances change.

Signature

Date signed

ADOPTION CHECKLIST

Status: the Articles of Incorporation are filed with the Washington Secretary of State, effective May 7, 2026 (work order 2026050100360957). The entity exists; the remaining items complete federal and state compliance.

1. **CCFS verification: complete.** Exact legal name "Luminara Institute of Light" (no ", Inc.") confirmed against the filed record 2026-07-31. Registered agent and registered office confirmed against the filed record 2026-09-01: Thomas A. Furness III, 4939 NE 65th Street, Seattle, WA 98115. The filed record states the corporation has no members.
2. **EIN: confirm.** Obtain the IRS confirmation letter (CP 575) for the corporate record, and confirm the EIN and the fiscal year end recorded with the IRS match Section 10.9 before Form 1023 is filed.
3. **Hold the organizational Board meeting.** Elect the Board of Directors, elect officers with the Chair holding the office of president under the Chair title, adopt these bylaws by resolution, adopt the Conflict of Interest Policy at Appendix A, and collect signed Appendix B disclosures from all Directors and officers.
4. **File IRS Form 1023** for recognition of 501(c)(3) exemption, attaching the filed Articles with addendum, the adopted bylaws, and the conflict-of-interest policy.
5. **Register under the Washington Charitable Solicitations Act** (chapter 19.09 RCW) with the Secretary of State's Charities Program before soliciting donations in Washington, unless an exemption applies; calendar the annual renewal alongside the corporation's annual report.
6. **Attorney review:** one review pass of these bylaws against the filed Articles before final submission of Form 1023.